SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 6798 of 2019 (YEAR: 2020)

CORAM: L. NAGESWARA RAO, HEMANT GUPTA

Rajneesh Kumar
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Persons with Disabilities Act, 1995, Rights of Persons with Disabilities Act, 2016
Sections:	Section 33 PwD Act, Article 16

JUDICIAL HEADNOTE & SUMMARY

Reaffirmed reservation for persons with disabilities in public employment promotions, mandating reasonable accommodation as a facet of substantive equality.

RATIO DECIDENDI

The Court held that: Reaffirmed reservation for persons with disabilities in public employment promotions, mandating reasonable accommodation as a facet of substantive equality. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Rajneesh Kumar v. Union of India (Civil Appeal No. 6798 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Persons with Disabilities Act, 1995, Rights of Persons with Disabilities Act, 2016, particularly Section 33 PwD Act, Article 16. Reaffirmed reservation for persons with disabilities in public employment promotions, mandating reasonable accommodation as a facet of substantive equality.

OPERATIVE ORDER

ORDER: Decided